

SOFTWARE-AS-A-SERVICE TERMS OF SERVICE

Last Updated: January 1, 2024

Provider: DataVault Corp., 200 Tech Plaza, San Francisco, CA 94107

1. ACCEPTANCE OF TERMS

By accessing or using the DataVault platform ("Service"), you ("Customer") agree to be bound by these Terms of Service. If you are accepting on behalf of a company, you represent that you have authority to bind that entity.

2. SUBSCRIPTION AND FEES

Customer agrees to pay the subscription fees set out in the applicable Order Form. Fees are billed monthly in advance. Unpaid invoices accrue interest at 1.5% per month. Provider may suspend Service after 15 days of non-payment.

3. DATA OWNERSHIP AND PRIVACY

Customer retains full ownership of all data uploaded to the Service. Provider processes Customer data only as directed and in accordance with the Data Processing Agreement (DPA) attached as Exhibit B. Provider shall not sell or share Customer data with third parties.

4. INTELLECTUAL PROPERTY

Provider retains all rights, title, and interest in the Service, including all software, interfaces, and documentation. Customer is granted a limited, non-exclusive, non-transferable licence to use the Service during the term.

5. SERVICE LEVEL AGREEMENT (SLA)

Provider guarantees 99.5% monthly uptime for the Service.
Downtime credits: 10% bill credit for each 0.5% below the SLA guarantee.
Scheduled maintenance windows (max 4 hours/month) excluded from SLA.

6. LIMITATION OF LIABILITY

IN NO EVENT SHALL PROVIDER BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, OR CONSEQUENTIAL DAMAGES, INCLUDING LOSS OF PROFITS OR DATA. PROVIDER'S TOTAL LIABILITY SHALL NOT EXCEED THE FEES PAID BY CUSTOMER IN THE TWELVE MONTHS PRECEDING THE CLAIM.

7. INDEMNIFICATION

Customer shall indemnify and hold Provider harmless from any claims arising from: (a) Customer's use of the Service in violation of these Terms; (b) Customer's data infringing third-party intellectual property rights.

8. TERM AND TERMINATION

The initial term is 12 months. Either party may terminate with 30 days notice at the end of any term. Provider may terminate immediately if Customer materially breaches these Terms and fails to cure within 10 days of notice.

9. DATA RETURN AND DELETION

Upon termination, Provider will make Customer data available for export for 30 days. After that period, Provider will securely delete all Customer data.

10. DISPUTE RESOLUTION

Disputes shall be resolved by binding arbitration in San Francisco, CA under JAMS rules. Class action waiver applies disputes must be brought individually.

11. GOVERNING LAW

These Terms are governed by the laws of California.

12. MODIFICATIONS

Provider may update these Terms with 30 days notice. Continued use of the Service after notice constitutes acceptance of the updated Terms.